



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

June 7, 2024

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202208668 (Incident Date: December 20, 2022) regarding Detective Matthew Panik, Tax No. 961064 (DADS No. 2024-30086), and Police Officer Michael Myerson Tax No. 956931 (DADS NO. 2024-30085)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that the totality of the circumstances surrounding the substantiated allegations against Detective Panik and Police Officer Myerson does not support all of the findings. The Police Commissioner does agree with CCRB's substantiated allegation against Police Officer Myerson for violating Administrative Guide Procedure No. 304-11 (Compliance with New York City Right to Know Act).

The Police Commissioner has determined the officers' entry into the house concerned the safety of the complainant. Detective Panik and Police Officer Myerson are observed on Body Worn Camera (BWC) footage following the complainant into her home. The Police Commissioner has determined the only reason for doing so was to ensure her safety, as they were waiting for an ambulance to evaluate the complainant. Both officers testified they entered the complainant's home to ensure her safety and to prevent her from barricading herself inside. This demonstrates their main concern was to have the complainant evaluated by EMS, and not for any other reason, such as to search for evidence of a crime or to make an arrest. The officers were performing their community caretaking function. Furthermore, the complainant's sister entered the home with the officers, demonstrating that she supported their actions and that they were trying to help the

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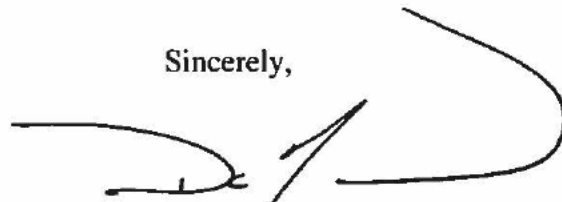
Website: <http://nyc.gov/nypd>

complainant. The Police Commissioner has determined Detective Panik and Police Officer Myerson's entry into the house did not rise to the level of misconduct. No disciplinary action will be taken against Police Officer Myerson and Detective Panik for the improper search allegation.

Detective Panik searched the complainant's bag based on his prior experiences with the complainant and to make sure there were no objects in the bag she could use to hurt herself, EMS, or hospital staff. Detective Panik stated to the complainant he had to make sure there is nothing in her bag for the ambulance, to which the complainant handed Detective Panik her bag to allow him to search. Detective Panik immediately returned the bag to her after verifying it did not contain any items that could harm the complainant, EMS, or hospital staff. Furthermore, due to the complainant's history and their prior interactions, it was important for the officers to be extra cautious in protecting everyone's safety. Detective Panik testified he was familiar with the complainant as she had frequently made 911 and 311 calls accusing her neighbors of being drug dealers, exhibiting paranoid behavior, and screaming at her neighbors. Notably, Detective Panik testified that in the past he had been involved in an incident with the complainant where she carried a pair of scissors, while screaming at her neighbor.¹ The Police Commissioner has determined the only reason for searching the complainant's bag was for everyone's safety, and therefore no disciplinary action will be issued in regards to this allegation.

Therefore, based on the foregoing, Detective Panik will receive no disciplinary action for the alleged violations of Administrative Guide Procedure 304-06 (1) (Prohibited Conduct/Unlawful Entry) and Patrol Guide Procedure 212-11 (Investigative Encounters/Unlawful Search of a Person). Police Officer Myerson will receive no disciplinary action for the alleged violation of Administrative Guide Procedure No. 304-06 (1) (Prohibited Conduct/Unlawful Entry). The Police Commissioner agrees with the issuance of a Schedule "A" Command Discipline to Police Officer Myerson for violating Administrative Guide Procedure No. 304- 11 (Compliance with New York City Right to Know Act).

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino', with a large, sweeping loop at the end.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

¹ CCRB Case No. 202207139 (DADS No. 2023-29612)